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LINE 7

26-CIV-03316

MALCOLM DURHAM VS. DIANA C. GUADALUPE CHIPANA, ET AL.

MALCOLM DURHAM

PRO SE

DIANA C. GUADALUPE CHIPANA

PRO SE

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MOTION TO STAY DISCOVERY PENDING HEARING ON DEMURRER

**TENTATIVE RULING:**

For the reasons stated below, Defendant Diana Guadalupe Chipana's dba Wealth Recovery Solutions ("Defendant") "Motion to Stay Discovery Pending Hearing on Demurrer," filed July 17, 2026, is DENIED.

Background. Plaintiff filed this case on April 29, 2026. The Complaint seeks (1) to set aside a default judgment entered against Plaintiff in a prior lawsuit in the Santa Clara County Superior Court; (2) to set aside all charging orders against Plaintiff's interest in Vida Capital Group, LLC; (3) "dismissal" of the underlying lawsuit filed in the Santa Clara County Superior Court; (4) a finding that Defendant has violated Calif. Bus. & Prof. Code § 17200; and (5) damages for "abuse of legal process." Defendant Chipana has filed a demurrer to Plaintiff's Complaint, arguing that all of Plaintiff's asserted claims are barred as a matter of law. The demurrer hearing is set for September 22, 2026 (less than one month from now).

According to Defendant's moving papers, on June 16, 2026, Plaintiff served three sets of written discovery on Defendant: (1) Form Interrogatories (Set One); (2) Requests for Production of Documents ("RFPs") (Set One), and (3) Requests for Admission ("RFAs"). According to the motion, Defendant's responses to the foregoing discovery requests was due on July 21, 2026 (about one month ago).

Defendant's motion argues that the Court is likely to sustain Defendant's demurrer to all asserted claims, and therefore, that good cause exists to relieve Defendant of the expense/burden of responding to Plaintiff's form interrogatories and RFPs, and the burden of producing responsive documents, until thirty (30) days after service of notice of entry of the Court's ruling on Defendant's demurrer. The motion asks for two alternative forms of relief, but they are essentially the same request, worded slightly differently. (See Notice of Motion.)

Application. The motion is denied. Defendant asks the Court to deviate from the normal rules governing discovery. As a general rule, the filing of a demurrer does not stay discovery. Code of Civil Procedure sections 2030.020, subdivision (b) and 2031.020, subdivision (b) provide that a plaintiff may propound interrogatories and requests for production of documents to a defendant ten (10) days after service of the summons on, or appearance by, the defendant. Discovery normally proceeds, regardless of whether the pleadings are at issue. Defendant's motion essentially asks the Court to predict the outcome of the demurrer, and to suspend Plaintiff's

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statutory discovery rights before the demurrer has been decided. The Court finds no compelling reason why this case should be treated as an exception to the general rule.

The case law cited by Defendant does not persuade the Court to reach a different conclusion. The court in *Williams v. Superior Court* (2017) 3 Cal. 5th 531, 541 recognized that trial courts have discretion to stay discovery, but also that courts must construe the facts before it liberally in favor of discovery. *Terminals Equip. Co. v. City & Cnty. of San Francisco* (1990) 221 Cal.App.3d 234, 245 involved a discovery stay issued *after* the trial court had sustained a demurrer on grounds that plaintiff failed to state any cause of action, and where plaintiff was seeking production of privileged documents. In *Silver v. City of Los Angeles* (1966) 245 Cal.App.2d 673, 674, the trial court disallowed certain discovery *after* the court had ruled that plaintiff's *second amended complaint* failed to state any cause of action. The court in *Pacific Architects Collaborative v. State of California* (1979) 100 Cal.App.3d 110, 126 found that a trial court did not abuse its discretion in barring certain depositions until after a ruling on a dispositive motion for summary judgment. *Coriell v. Superior Court* (1974) 39 Cal.App.3d 487, 489 held that a trial court had improperly stayed discovery in a class action case pending a ruling on a motion involving plaintiff's class status. None of these cases support Defendant's request for a discovery stay here. Instead, as the Court of Appeal stated over thirty-five years ago and the statement remains true today, "Pleading deficiencies generally do not affect either party's right to conduct discovery..." (*Mattco Forge, Inc. v. Arthur Young & Co.* (1990) 223 Cal.App.3d 1429, 1436; *Cal. Prac. Guide Civ. Pro. Before Trial*, 21 8:58 (June 2026 update).)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Plaintiff shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

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2:00 PM

LINE 8

26-CIV-04417

EDWARD J. MOREY VS. CSAA INSURANCE EXCHANGE, ET AL.

EDWARD J. MOREY  
CSAA INSURANCE EXCHANGE

GAIL J. LAMCHICK  
ROBERT K. PHILLIPS

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MOTION TO COMPEL ARBITRATION AND FOR APPOINTMENT OF ARBITRATOR

**TENTATIVE RULING:**

Petitioner Edward J. Morey's Petition for Order Compelling Arbitration and Appointment of Arbitrator is GRANTED-IN-PART, as follows:

This Petition to Compel Arbitration relates to an underlying incident on November 15, 2020 during which Petitioner Edward J. Morey sustained bodily injury caused by an underinsured motor vehicle driven by Tyler Della, who was under the influence of alcohol. The insurer that issued the policy covering the vehicle driven by Tyler Della has paid its policy limit to Petitioner. Petitioner was covered by an automobile insurance policy issued by Respondent CSAA Insurance Exchange ("CSAA"). Petitioner was also covered by an umbrella insurance policy from Respondent Chubb Indemnity Insurance Company ("Chubb") providing excess uninsured and underinsured motorist bodily injury liability insurance coverage of \$1,000,000.

Petitioner here moves to compel a single consolidated arbitration pursuant to apparent arbitration agreements in each relevant insurance policy.

California law strongly favors arbitration, finding it a speedy and relatively inexpensive manner of dispute resolution. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125; *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 97.) A party to an arbitration agreement may seek a court order compelling the parties to arbitrate a dispute covered by the agreement. (Code Civ. Proc., § 1291.2.) The court must grant the petition to compel arbitration unless it finds the right to compel arbitration has been waived by the moving party; grounds exist for the revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (*Id.*, § 1281.2.) Private arbitration is a matter of agreement between the parties and is accordingly governed by contract law. (*Platt Pacific, Inc. v. Andelson* (1993) 6 Cal.4th 307, 313.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) Petitioner, as the one bringing the motion, bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236 [citing *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972].)

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